

Deepak Das vs Smt. Dipika Das on 29 August, 2022

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

CRR No. 439 of 2022

Deepak Das, S/o Baljeet Das, Aged About 30 Years, Caste Panika, Occupation Service (Peon- Rasoiya Boys Hostel Lakhanpur) R/o Village Kenwari, P.S. and Tahsil Lakhanpur, District Sarguja Chhattisgarh. ---- Applicant

Versus

1.

Smt. Dipika Das, W/o Deepak Das, D/o Late Kamleshwar Das, Aged About 27 Years, R/o Village Kenwari, P.S. and Tahsil Lakhanpur, District Sarguja Chhattisgarh.

2. Vedant Das, S/o Deepak Das, Aged About 6 Years, Minor Through Legal Nature Mother Smt. Dipika Das, S/o Deepak Das, Caste Panika, R/o Village Kenwari, P.S. and Tahsil Lakhanpur, District- Sarguja, Chhattisgarh. ---- Non-applicants For Applicant : Shri Basant Kaiwartya, Shri Lov Kumar Lahare & Shri Gorelal Tandan, Advocates For Non-applicants : Shri Vinod Tekam, Advocate Hon'ble Shri Justice Rakesh Mohan Pandey Order on Board 29.08.2022

1) This present criminal revision is filed against the order passed by the learned Family Court Ambikapur, District- Sarguja (Chhattisgarh) in Misc. Criminal Case No. 158/2018, dated 06.04.2022, whereby the learned Family Court awarded Rs. 2,000-2,000/- as maintenance to the non-applicants who are wife and child of the applicant, from the date of order.

2) The application under Section 125 of Cr.P.C. was filed by the non-applicants herein on the ground that the non-applicant No.1 is wife and non-applicant No.2 is son of the applicant. The marriage between the applicant and non-applicant No.1 was performed on 16.05.2011 according to their custom and in the year 2015 non-applicant No.2 was born. Thereafter, the applicant stopped going to the place where the non-applicants were residing and he refused to maintain them. They further pleaded that the applicant is working as cook and he has 5 acres of agricultural land and they claimed Rs.5,000/- each as maintenance.

3) The applicant herein filed reply and submitted that the non- applicant No.1 has performed marriage with one Imammuddin and one agreement has been executed between the non- applicant No.1 and Immamuddin. He further submits that one agreement of divorce was executed between the applicant and non-applicant No.1, therefore, the non-applicants are not entitled for grant of maintenance.

4) Learned Family Court after appreciating the evidence held that the Ex.D/6 & D/7 which are agreement of marriage and agreement of dissolution of marriage are not admissible because those documents have not been proved by examining the attesting witnesses.

5) Learned Family Court further held that applicant/husband is earning Rs. 8,110/- per month and Ex.D/5 salary slip has been placed on record. It is also observed that the applicant/husband is running one grocery store and thus the learned Family Court awarded Rs.2,000-2,000/- to the non-applicants.

6) Learned counsel for the applicant submits that as per Annexure A/2 i.e. agreement of marriage, non-applicant No.1 has performed second marriage with Immamuddin, who is resident of Raebareli and she is living peacefully with him. He further submits that as per Annexure A/3 i.e. Talaqnama which is executed between the applicant and non-applicant No.1 on 04.06.2014, non-applicant No.1 is not entitled for grant of maintenance.

7) Learned counsel for non-applicant No.1 submits that the agreement of marriage is forged document and attesting witnesses have not been examined by the applicant. The applicant and non-applicants belong to Hindu Community, therefore, agreement of marriage is not admissible. The marriage which has been performed according to Section 5 of Hindu Marriage Act can be termed as valid marriage. He further submits that the document of the dissolution of the marriage which contains signature of the applicant and non-applicant No.1 is also not admissible being contrary to law.

8) I have heard learned counsel for the parties and perused the record.

9) From the records, it appears that the applicant was not maintaining the non-applicants properly, therefore, the application under Section 125 of CrPC was filed. The learned Family Court has considered the genuineness and admissibility of the documents Ex.D/6 which is the marriage agreement and Ex.D/7 which is document showing dissolution of marriage and found that both documents are not admissible and both have not been proved by the applicant. Further considering the fact that the applicant is getting Rs. 8,110/- salary per month and also running one grocery store, I am of considered view that the learned Family Court has not committed any illegality in awarding Rs. 2,000/- to each of the non-applicants. The instant criminal revision is thus devoid of merits and the same is liable to be and is hereby dismissed.

Sd/-

(Rakesh Mohan Pandey) Judge Nadim